

23SMCV01747 23SMCV01747

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TENTATIVE RULING

July 10, 2026

23SMCV01747 (1130 Angelo LLC v. Thome Waterproofing Co., Inc.)

RELEVANT BACKGROUND

On April 24, 2023,

Plaintiff 1130 Angelo, LLC (Plaintiff) filed the complaint against defendant Thome Waterproofing Co., Inc. (Thome) and Does 1-20, alleging two causes of action for negligence and breach of contract – third party beneficiary (Civ. Code § 1559).

On May 11, 2023,

Plaintiff filed a first amended complaint (FAC).

On August 28, 2023,

Thome filed a cross-complaint against Paul Oh, individually and doing business as Oh's Design and Development, LLC; Samuel Oh, individually and doing business as Oh's Design and Development, LLC; Oh's Design and Development, LLC; Farbod Rezvani, individually and doing business as Di Nalli Construction; Di Nalli Construction; and Roes 1- 50

On August 26, 2024,

Rezvani filed a cross-complaint.

Paul Oh, individually

and doing business as Oh's Design & Development, Samuel Oh, individually and doing business and Oh's Design & Development, and Oh's Design & Development, LLC (collectively, the Ohs) served as the general contractor for the construction of the residential property at 1130 Angelo Drive, Los Angeles, California (Project). The Ohs retained Thome as a subcontractor to provide materials, supplies, and/or services. Plaintiff alleges that Thome negligently performed waterproofing work at the Project, and that there have been leaks and water damage to the Project's basement. The resulting damages—the costs to repair the damage caused by Thome's negligence and associated construction delays—allegedly exceed \$1 million.

INSTANT MOTION

On May 22, 2025, Kinsale Insurance Company (Kinsale) filed the instant motion for leave to intervene. Plaintiff filed an opposition, and Kinsale filed a reply. Cross-Complainant Thome did not file any opposition.

EVIDENTIARY

OBJECTIONS

Plaintiff's objections nos. 1-4 are overruled.

DISCUSSION

Code of Civil Procedure section 387(d) provides the following:

(1) The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied:

(A) A provision of law confers an unconditional right to intervene.

(B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's

interest is adequately represented by one or more of the existing parties.

(2) The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both.

(Code Civ. Proc., § 387, subd. (d).)

The court may also permit a party to intervene (1) if the nonparty has a direct and immediate interest in the litigation, (2) the intervention will not enlarge the issues in the case, and (3) the reasons for intervention outweigh any opposition by the existing parties. (Code of Civ. Proc. § 387, subd. (a); *US Ecology, Inc. v. State* (2001) 92 Cal. App. 4th 113, 139; *Noya v. A.W. Coulter Trucking* (2006) 143 Cal.App.4th 838, 842.)

Whether the petitioner has an interest in the matter in litigation is a question of fact that must be determined by the court before leave to file is granted. (*Muller v. Robinson* (1959) 174 Cal.App.2d 511, 515; *In re Yokohama Special Bank* (1948) 86 Cal.App.2d 545.)

There is no statutory time limit for filing a motion to intervene. (*Noya, supra*, 143 Cal.App.4th at 842.) But a right to intervene should be asserted within a reasonable time. (*Allen v. California Water & Tel. Co.* (1947) 31 Cal.2d 104, 108.) Intervention is timely unless a party opposing intervention can show prejudice due to a delay in filing the motion to intervene. (*Truck Ins. Exchange v. Superior Court* (1997) 60 Cal.App.4th 342.)

Kinsale's motion for leave to intervene is GRANTED. The Court finds that intervention is appropriate under Code of Civil Procedure section 387 on the basis that Kinsale has a direct and immediate interest because it issued a liability insurance policy to Oh's Design & Development, LLC potentially implicated by the claims asserted against Oh's Design & Development, LLC. (See Sarrafan Decl.) The proposed Answer in Intervention states that Kinsale's intervention is limited to participation in the defense of the existing cross-complaint asserted against Oh's. (Id. ¶ 21.) The intervention will not enlarge the issues

in the case, and the proposed Answer in Intervention does not ask the Court to decide coverage, policy limits, exclusions, duty to defend, duty to indemnify, or any coverage dispute between Kinsale and Oh's. (Id. ¶ 22.) Lastly, the Court finds that the reasons for intervention outweigh any opposition by the existing parties. Notably, Cross-Complainant Thome, the only party adverse to Oh's (and therefore to Kinsale if it is allowed to intervene) does not oppose intervention.